

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1270

By: Hays

AS INTRODUCED

An Act relating to alcoholic beverages; amending 37A O.S. 2021, Section 2-142, which relates to information furnished by license applicants; providing that the Oklahoma Alcoholic Beverage Law Enforcement Commission (ABLE) shall notify an applicant in writing of any deficiencies in the application with a description of what actions need to be taken to cure the deficiencies within a certain time period; providing that applicant will then have a reasonable period of time to provide the required information; providing time period for ABLE to approve or deny an application; providing for manner of a denial to be delivered and what information must be given to the applicant by ABLE; providing that the failure of ABLE to adhere to provided provisions shall result in a presumptive issuance of the license subject to review by the ABLE Commission; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 37A O.S. 2021, Section 2-142, is amended to read as follows:

Section 2-142. A. No license provided for in the Oklahoma Alcoholic Beverage Control Act shall be issued except pursuant to an application filed with the ABLE Commission. The ABLE Commission

1 may, however, provide for a form of simplified application for
2 renewal of a license. Payment of the prescribed fee shall accompany
3 each application for a license.

4 B. Every applicant for an original license, except applicants
5 for an employee, charitable event, special event or airline/railroad
6 beverage license, shall also furnish the following:

7 1. A tax receipt proving payment of ad valorem taxes, including
8 real and personal taxes, or furnish to the ABLE Commission
9 satisfactory evidence that no taxes are due or delinquent;

10 2. A certificate of zoning issued by the municipality in which
11 the applicant proposes to locate the applicant's principal place of
12 business under the license, or by the county if the principal place
13 of business is located outside the incorporated limits of a
14 municipality, certifying that the applicant's proposed location and
15 use thereof comply with all municipal zoning ordinances or county
16 zoning regulations if applicable;

17 3. A certificate issued by the municipality in which the
18 applicant proposes to locate the applicant's principal place of
19 business under the license, or by the county if the principal place
20 of business is located outside the incorporated limits of a
21 municipality, certifying that the applicant's existing or proposed
22 operations under the license comply with all municipal or county
23 fire codes, safety codes, or health codes, if applicable;

1 4. Authorization, on forms furnished by the ABLE Commission,
2 for complete investigation of the applicant's current financial
3 status as it relates to the application for a license, including but
4 not limited to access to bank accounts, loan agreements and
5 financial statements;

6 5. A deed, management agreement, purchasing agreement or lease;
7 and

8 6. Proof of liability insurance covering both bodily injury and
9 property damage.

10 C. The certificates required by paragraphs 2 and 3 of
11 subsection B of this section shall be signed by the mayor of the
12 municipality or the chair of the board of county commissioners
13 issuing same, unless the municipality, by ordinance, or the county
14 designates some other officer or entity to issue the certificates.
15 Applications for such certificates shall be in writing and shall
16 contain information in such detail as the municipality or county may
17 reasonably require describing the location and nature of operations
18 to be conducted under the license. Municipalities and counties
19 shall be required to act on all applications for such certificates
20 within twenty (20) days of receipt of the written application.

21 D. Municipalities and counties may grant conditional
22 certificates for premises proposed for licensed operations for which
23 construction, modification or alteration is not completed.
24 Conditional certificates shall indicate that the proposed premises

1 will comply with the municipal or county zoning, fire, safety and
2 health codes. The granting of conditional certificates shall not
3 relieve the applicant of the duty of obtaining the certificates
4 required by paragraphs 2 and 3 of subsection B of this section after
5 completion of the construction, modification, or alteration.

6 E. A municipality or county shall issue the certificates
7 required by paragraphs 2 and 3 of subsection B of this section
8 within ten (10) days after all final inspections are completed.

9 Thereafter if a licensee fails to maintain compliance with
10 municipal or county zoning ordinances and codes, the mayor or chair
11 of the board of county commissioners or their designee, shall
12 forthwith notify the ABLE Commission in writing setting forth
13 details of the noncompliance.

14 F. Within ten (10) days of the receipt of all information
15 required in subsections B through E of this section, ABLE shall
16 notify the applicant in writing of any deficiencies in the
17 application with a description of what actions need to be taken to
18 cure the deficiencies. Applicant will then have a reasonable period
19 of time to provide the additional information sufficient to complete
20 the application. Upon a completed application, ABLE shall issue or
21 deny the license within twenty (20) days of applicant's final
22 submission. ABLE'S denial of issuance of a license shall be in
23 writing and shall state with specificity the reasons for the denial.
24 Failure by ABLE to adhere to the provisions of this paragraph shall

1 result in a presumptive issuance of the license subject to review by
2 the ABLE Commission.

3 G. Upon issuance of any license, the ABLE Commission shall
4 furnish the Oklahoma Tax Commission with a list of such licenses.

5 ~~G.~~ H. In the event of denial of an application for a license,
6 the ABLE Commission shall refund to the applicant the amount of the
7 tendered fee, less ten percent (10%), which it shall retain as cost
8 of processing the application.

9 ~~H.~~ I. Any licensee, except an employee licensee, who fails to
10 renew the license prior to the expiration date of the license, shall
11 be subject to a late renewal penalty as provided by rules of the
12 ABLE Commission. Further, any licensee, except an employee
13 licensee, who fails to renew the license within sixty (60) days of
14 the expiration of the license shall be required to submit a new
15 license application. An employee licensee who fails to renew prior
16 to the expiration of the license shall be required to submit a new
17 license application; provided, however, that under no circumstances
18 shall any licensee, including an employee licensee, whose license to
19 serve or sell alcoholic beverages has expired, continue to serve or
20 sell alcoholic beverages.

21 ~~I.~~ J. The requirements in this section shall be required for a
22 public event license applicant, except for those certificates
23 required by paragraphs 2 and 3 of subsection B of this section as
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1 the events are temporary in nature and the locations are not
2 permanently licensed.

3 SECTION 2. This act shall become effective November 1, 2025.

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